

The Orissa State Electricity Board Employees' Pension (including Old Age and Family Pension) Regulations, 1992

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Rule

THE-ORISSA-STATE-ELECTRICITY-BOARD-EMPLOYEES-PENSION-INCLUDING-OLD-AGE-AND-FAMILY-PENSIO
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The Orissa State Electricity Board Employees' Pension (including Old Age and Family Pension) Regulations, 1992

Published vide Notification Orissa Gazette Extraordinary No. 923/1.7.1992-Notification No. 10320/28.3.1992

No. 10320 - The Orissa State Electricity Board Employees' Pension (including Old Age and Family Pension) Regulations, 1992 made by the Orissa State Electricity Board under Section 79 (c) of the Electricity (Supply) Act, 1948 and approved in its 317th meeting held on the 17th Match, 1992 vide Item No. 3.2 of the proceedings thereon, are hereby published for general information.

In exercise of the powers conferred by Section 79 (c) of the Electricity (Supply) Act, 1948, the Orissa State Electricity

Board, hereby makes the following regulations to regulate the grant of pensionary benefits including old age and family pension to its employees.

1.

These regulations shall be called "The Orissa State Electricity Board Employees' Pension (including Old Age and Family Pension) Regulations, 1992."

2.

Definitions.

(a)

"Board" means Orissa State Electricity Board constituted under Section 5 of the Electricity (Supply) Act, 1948;

(b)

"Chairman" means Chairman of Orissa State Electricity Board;

(c)

"Permanent Employees" shall mean and include an employee who has either been confirmed in the service of the Board or has held any post under the Board for a period of at least 3 years in the regular establishment;

(d)

"Regular Establishment" means an establishment under the Board other than work-charged establishment and units employing Nominal Muster Roll, Casual Employees;

(e)

"Employees" means employees appointed by the Board to hold any post or service under regular establishment of the Board but does not include-

(i)

Employees who have exercised their option of unwillingness to be covered by the pension scheme of the Board.

(ii)

Workmen engaged on the Nominal Muster Roll (N.M.R.).

(iii)

Casual Labourers.

(iv)

Employees paid from and out of contingencies.

(v)

Employees under contract service.

(vi)

Employees of Ex-Supply Company who have been absorbed in the service of Orissa State Electricity Board.

(vii)

Persons engaged as apprentices.

(viii)

Employees under the Work-Charged Establishments.

3.

The benefits under these regulations shall be available to all the regular employees of the Board with effect from 1.4.1990 :

Provided that the period of service rendered by such regular employees in the work-charged establishment shall count towards pensionary benefits if such employees had been or are brought over to the regular establishment after rendering a minimum period of five years of continuous service in the work-charged establishment :

Provided further that the following periods of service rendered by such employees shall not count towards the qualifying service for pension-

(i)

The period of service rendered on Nominal Muster Roll (N.M.R.).

(ii)

The period of service rendered as Casual Labourers.

(iii)

The period of service rendered as contingency paid employees having received remuneration for such service from and out of the contingent fund in any of the establishment under the Board.

(iv)

The period of contract service.

(v)

The period of service rendered as apprentice.

4.

Entitlement.

(a)

All employees who become entitled to the pensionary benefits including the Old Age and Family Pension as may be available under the Pension Scheme of the Orissa State Electricity Board, as framed under these regulations, shall hereafter, cease to enjoy the benefit of Employees Provident Fund (E. P. F.) as envisaged under the provisions of Employees Provident Fund and Misc. Provisions Act, 1952 or under the provisions of Orissa State Electricity Board Employees' Provident Fund Rules, 1965, as the case may be :

Provided that the employees who are not covered by or under these regulations shall continue to be governed by the provisions of the Orissa State Electricity Board Employees' Provident Fund Rules, 1965 and/or Employees' Provident Fund and Misc. Provisions Act, 1952 and the schemes made thereunder, to the extent they applicable.

(b)

All employees of the Board covered by these regulations shall be liable to contribute to the Provident Fund as is applicable to the State Government Employees under the Orissa Pension Rules, 1977.

5.

Subject to these regulations, the Orissa Pension Rules, 1971 as amended from time to time by the Government of Orissa including all other orders, notifications, memoranda and resolutions issued by the State Government regulating the Pensionary benefits from time to time shall mutatis and mutandis be the 'Pension Regulation' of the Orissa State Electricity Board.

6.

The Board reserves the right to amend these regulations as may be considered necessary or expedient from time to time, and to issue appropriate orders and directions for the purpose of implementing the Pension Regulations.

7.

All words and phrases, which have not been specifically defined herein, shall carry the same meaning as are assigned to them under the Orissa Pension Rules, 1977 as if the said rules have been framed by the Board.

8.

If any doubt arises as to the interpretation of any of these regulations, the matter shall be referred to the Chairman of the Board whose decision thereon shall be final.

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